

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR
MANATEE COUNTY, FLORIDA**

COLONIAL MANOR HOMEOWNERS
ASSOCIATION, INC., a Florida
Non-for-profit corporation,

CASE NO: 2022 CA 4348

Plaintiff,

v.

COLONIAL MANOR MHC HOLDINGS
LLC, a foreign limited liability company,

Defendant.

ANSWER AND AFFIRMATIVE DEFENSES

Pursuant to the Florida Rules of Civil Procedure, Defendant Colonial Manor MHC Holdings LLC (hereinafter referred to as “Colonial Manor MHC”), hereby responds to Plaintiff Colonial Manor Homeowners’ Association, Inc.’s, (hereinafter referred to as “Colonial Manor HOA”) Complaint as follows:

JURISDICTION AND FACTUAL BACKGROUND

1. Colonial Manor MHC is without knowledge concerning the allegations in the first sentence ¶ 1, and the last sentence is denied.

2. Admitted.

3. Admitted.

4. Colonial Manor MHC is without knowledge concerning the allegations in ¶ 4, therefore, denied.

5. Admitted Colonial Manor MHC is licensed to do business in the State of Florida and owns the Park, the remaining allegations of ¶ 5 are denied.

6. Admitted that Colonial Manor MHC acquired the Park in 2015, otherwise denied.
7. Admitted that Exhibit A is a lot rental increase notice for the Park, otherwise denied.
8. Denied.
9. Denied.
10. Admitted that a mediation was held, otherwise Colonial Manor MHC has insufficient knowledge to admit or deny the remaining allegations.
11. Without knowledge.

COUNT I
UNREASONABLE LOT FEE INCREASE PURSUANT TO §'s 723.033 and
723.037 FLA. STAT. (2022)

12. Colonial Manor MHC adopts its responses to Paragraphs 1 – 11.
13. Paragraph 13 is an allegation of law and an incomplete quote of the governing statute. To the extent that a response is required, it is denied.
14. Paragraph 14 is an allegation of law and an incomplete quote of the governing statute. To the extent that a response is required, it is denied.
15. Colonial Manor MHC admits the first sentence of ¶ 15, but is without knowledge of the remaining allegations.
16. Denied.
17. Denied.
18. Denied.
19. Denied.
20. Paragraph 20 is an allegation of law. To the extent that a response is required, it is denied.

- 21. Denied.
- 22. Without knowledge.

AFFIRMATIVE DEFENSES

23. **Lack of standing.** Upon information and belief, Colonial Manor MHC lacks standing to sue due to its failure to create its entity pursuant to section 723.075, Fl. St., its failure to operate in accordance with the requirements of Chapter 723, Fl. St., and the failure of its fiduciary obligations to the homeowners.

24. **Lack of commonality.** Actions seeking relief pursuant to Rule 1.222 Florida Rules of Civil Procedure require complete commonality. Homeowners purporting to be represented by Colonial Manor HOA have agreed to pay prevailing market rates which cannot be contested by Colonial Manor HOA.

25. **Certification required.** Actions filed pursuant to Rule 1.222, F. R. Civ. P. require an evidentiary hearing and class certification to assure that complete commonality and due process exists.

DEMAND FOR ATTORNEYS' FEES

Defendant has retained the undersigned law firm to represent it in this action and are obligated to pay a reasonable fee for the undersigned's services. Pursuant to Section 723.068, *Florida Statutes*, Defendants request an award of its reasonable attorneys' fees upon its prevailing in the action or on specific elements of the action.

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing has been served upon James C. Turffs, Esq, Porges, Hamlin, Knowles, & Hawk PA, 1205 Manatee Avenue West, Bradenton, Florida 34205 jct@phkhlaw.com; sherry@phkhlaw.com via the Florida E-Portal on this 14th day of November, 2022.

LUTZ, BOBO & TELFAIR, P.A.



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